

24STCP02941 24STCP02941

County: los-angeles

Division: Civil Law and Motion

Department: 834

Hearing date: 2026-08-04

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Case Number: 24STCP02941 Hearing Date: August 4, 2026 Dept: 834

Superior Court of California

County of Los Angeles

Department 834

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BARRY ROSEN, M.D.,

Plaintiff(s),

vs.

CLARK

DRIVE HOMEOWNERS ASSOCIATION, et al.,

Defendant(s).

Case No.:

24STCP02941

Hearing Date:

August 4, 2026

[TENTATIVE] ORDER RE:

MOTION FOR ATTORNEY FEES

Plaintiff Barry Rosen (“Plaintiff”)

moves for attorney fees and costs from defendants Clark Drive Homeowners Association (“Association”), Deborah Bushell (“Bushell”), Elizabeth Muller (“Muller”), and Payam Yashar (“Yashar”) (collectively, “Defendants”) under Civil Code section 5145, and requests statutory penalties.

Although the parties have attempted to turn this fee dispute into a broader, accusatory exchange, the legal issue before the Court is straightforward. The motion is resolved solely on the governing timeliness rules. On that basis, the motion is denied.

I.

Background

On September 12, 2024, Plaintiff filed his verified complaint, initiating this action.

On February 11, 2025, the Court heard the matter and granted Plaintiff mandamus relief. On April 10, 2025, the Court entered judgment in favor of Plaintiff. On April 14, 2025, the Court issued a writ of mandate against Defendants.

On May 27, 2026, Plaintiff filed the instant attorney fee motion. On July 15, 2026, Defendants filed their opposition. On July 28, 2026, Plaintiff filed his reply. On July 29, 2026, Defendants filed a brief styled as objections to evidence in Plaintiff’s reply, or alternatively, a proposed sur-reply. [1]

II.

Discussion

Plaintiff seeks an award of \$104,927, composed of \$103,927 in attorney fees and \$1,000 for two \$500 statutory penalties for violations of election statutes. (Mot. at 11-12.)

As Defendants argue in opposition (Opp. at 2), the motion is untimely.

California Rules of Court

(“CRC”), rule 3.1702, subdivision (b)(1) provides that a motion claiming fees for services up to and including trial court judgment must be filed and served “within the time for filing a notice of appeal under rule[] 8.104 and 8.108.” [2] (CRC 3.1702(b)(1).) CRC rule 8.104 provides that a party must file a notice of appeal on or before the earlier of (A) 60 days after the clerk serves the party with a notice of entry of judgment or a filed-endorsed copy of the judgment; (B) 60 days after the party is served by another party with the same; or (C) 180 days after entry of judgment. (CRC rule 8.104.)

Here, the Court entered judgment in favor of Rosen on April 10, 2025. Consequently, the time to appeal the Court’s judgment expired, at latest, 180 days later, or October 7, 2025. (CRC rule 8.104.) Plaintiff filed his motion on May 27, 2026, or 232 days beyond the window to timely file. (CRC rules 3.1702, 8.104.)

In reply, Plaintiff argues that the Court’s writ “was never properly issued,” and therefore “the motion is timely, and the time to bring the motion for attorney fees was not subject to any limitations period.” (Reply at 3.)

CRC rule 3.1702 is clear. The time to file a motion claiming attorney fees is the same as the time to file a notice of appeal. (CRC rule 3.1702.) CRC rule 8.104 is also clear. The 180-day limitations period to file a notice of appeal begins with the entry of judgment. (CRC rule 8.104.) Plaintiff does not argue that any of the explicit extensions or exceptions apply; provides no legal authority supporting his position that the limitations period does not begin until a writ issues; and provides no legal authority suggesting that improper issuance of a writ tolls the limitations period. Furthermore, Plaintiff provides no evidence or legal basis to support his contention that the writ “was never properly issued.” (Reply at 2-3.)

The deadlines in CRC rule 3.1702(b) are mandatory, not discretionary, and the Court has no authority to enlarge or disregard them absent a statutory or rule-based exception. Even accepting Plaintiff’s factual assertions for the sake of argument, they would not alter the legal deadlines. The time to file a fee motion runs from entry of judgment, not from the issuance or service of a writ, and Plaintiff identifies no authority establishing otherwise. Plaintiff also did not seek any extension

under CRC rule 3.1702(d) nor identify any basis for additional time under CRC rule 8.108. No extension applies here.

Accordingly, the motion is untimely.

III.

Conclusion

Because the motion is untimely, the Court does not reach the parties' remaining arguments, including those concerning the reasonableness of the hours claimed, the hourly rate, or Plaintiff's request for statutory penalties.

The motion is DENIED.

Date: August 4, 2026

HON. TIANA J. MURILLO

PLEASE TAKE NOTICE:

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Parties

are encouraged to meet and confer after reading this tentative ruling to see if they can reach an agreement.

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If

a party intends to submit on this tentative ruling, the party may send an email to the court at with the Subject line "SUBMIT" followed by the case number. The body of the email must include the hearing date and time, counsel's contact information, and the identity of the party submitting.

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Unless

all parties submit by email to this tentative ruling, the parties should arrange to appear remotely (encouraged) or in person for oral argument. You should assume that others may appear at the hearing to argue.

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If

the parties neither submit nor appear at hearing, the court may take the matter off calendar or adopt the tentative ruling as the order of the court. After the court has issued a tentative ruling, the court may prohibit the withdrawal of the matter without leave.

[1]

The parties departed from standard motion practice. Plaintiff's reply brief contains substantial new factual assertions, evidence, and theories not presented in the moving papers, including new allegations concerning counsel's conduct and unauthenticated transcripts. Defendants then filed objections/a proposed sur-reply without leave of court. In the interest of completeness, the Court has reviewed all submitted materials. The Court nevertheless exercises its discretion not to consider any new evidence or arguments raised for the first time in reply or any sur-reply arguments. In any event, none of the improper submissions affects the outcome of this motion. As discussed herein, Plaintiff's motion is untimely and the Court resolves it on that ground.

[2]

CRC rule 3.1702 also notes the time to appeal for limited civil actions is governed by rules 8.822 and 8.823 rather than 8.104 and 8.108. (CRC rule 3.1702(b)(1).) CRC rule 8.108 allows for extensions of the basic time to file an appeal under CRC rule 8.104 where certain motions or other actions are taken after entry of judgment, none of which apply here. (CRC rule 8.108.) CRC rule 3.1702, subdivision (b)(2) also provides that parties may stipulate to extensions under certain conditions. (CRC rule 3.1702(b)(2).) Plaintiff does not contend the parties so stipulated. CRC rules 8.702 and 8.712 also provide for shortened time to appeal from review of streamlined California Environmental Quality Act projects and from orders denying or dismissing petitions to compel arbitration, neither of which apply to this case. (CRC rules 8.702, 8.712.)